

UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF NEW YORK

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Chapter 11

Case No. 8-25-72526-spg

In Re:

IPA Asset Management, LLC,

DECLARATION

Debtor,

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SCOTT KREPPEIN, an attorney duly admitted to practice before this Court,
declares the following under penalty of perjury:

1. I am a partner with Devitt Spellman Barrett, LLP, counsel for Creditor Marie Holdings, Inc., and as such I am fully familiar with the facts and circumstances of this case.

2. This declaration is respectfully submitted, along with the within memorandum, in connection with the Court's directive to submit briefing in connection with the issue of the Debtor and its principal's possible fraud on the Court.

3. Annexed hereto, please find the following exhibits:

- A. IPA Website and Marketing Material
- B. David DeRosa 10/7/2024 Affidavit
- C. 1/11/2021 Letter from Shannon McKinley discussing collecting rent, and purposely not recording deeds so as to not disclose change in ownership to the lenders
- D. Property Improvement and Sale Agreement re 132 West 130th

- E. David DeRosa 2017 Affidavit re 132 West 130th
- F. Orders 132 West 130th Street, Index No. 810052/2011
- G. Rakesh Bhargava 3/30/2021 Affidavit
- H. Schedule of IPA-Mangotree Properties
- I. Mangotree Settlement Agreement
- J. Confession of Judgment on behalf of multiple entities, jointly, for Mangotree Debt
- K. Shannon McKinley 10/8/2024 Affirmation
- L. 8/9/24 IPA Asset Management LLC Quickbooks Printout
- M. 7/17/2024 Mangotree Ledger re Pre-Petition Sales of IPA Properties
- N. 6/30/2025 Escrow Accounting for Proceeds of Pre-Petition Sales
- O. 2024 Correspondence re 724 Old Post and 85 Hudson
- P. 724 Old Post Deed Screenshot
- Q. 85 Hudson Property Record
- R. 59 Bleacher Listing
- S. 504 Browns Road
- T. 1140 Flanders Records
- U. 21 Litchfield Road Records
- V. 2025 L&T Files and Select Civil Matters from 6th District Court. I certify that these are true and correct copies of original records I obtained at the clerk's office for the 6th District Court, Brookhaven.
- W. 639 5th Street Records

- X. 21 Litchfield Records
- Y. 1091 Gardiner Records
- Z. 665 North Dutton Records
- AA. 161 Hampton Ave Records
- BB. 132 East 34th Street Records
- CC. 2023 Wisdom Funding UCC For 436 Oceanfront
- DD. 1082 Connequot Records
- EE. 724 Old Post Records
- FF. 6 Vinyard Records
- GG. 145 Hunters Drive Records
- HH. 15 Barberry Records
- II. 170 Hamlet Drive Records
- JJ. 82 Yale Records
- KK. 2023 Aronov Loans
- LL. LI Investment Records
- MM. 21 Oak Records

WHEREFORE, it is respectfully submitted that David DeRosa and the Debtor have engaged in fraud on the Court and appropriate sanctions should be imposed. Additionally, law enforcement referrals should be considered, as DeRosa and the Debtor's flagrant misrepresentations and omissions to the Court likely constitute bankruptcy fraud under 18 U.S.C. §§ 152(1, 2, 3, 7 and 9) and 157, and the underlying facts and circumstance are suggestive of violations of, *inter alia*, 18 U.S.C. §§ 641,

1001, 1012, 1341, 1343, 1344, 1956, 1957, 1962, and 12 U.S.C. § 1709-2.

Executed on 8/25/2026

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Respectfully submitted,

/s/ Scott Kreppein

Scott Kreppein

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Atty for Creditor Marie Holdings, Inc.